BATES LANDSCAPING
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SAINT ANN PARISH
502 MAIN STREET
PHOENIXVILLE, PENNSYLVANIA
19460

Sales: Melissa Blake

Saint Ann Parish - MAINT 27 - 29 (Cemeteries)

502 Main Street Phoenixville, Pennsylvania 19460

Est ID: EST3998451

Date: Oct-15-2026

Email: operations@churchofsaintann.org

Phone: 610-933-3732 x 108

This is for a 3-year contract for 2027, 2028, 2029. Each additional year will include a 2% increase.

Thank you for choosing Bates!

OUTLINE OF MAINTENANCE SERVICES -

Spring Clean-up - this service provided is to clean-up all left over leaf, stick, and green debris from the winter months. All ornamental grasses and Liriope will be cut down to help refresh the new seasonal growth. Once the clean up is completed, all debris will be hauled off site. All the planting beds and tree rings will be prepared for a mulching application. Hand weeding and spraying will be completed to maintain the weeds and remove any debris before mulch is applied. Then a natural shoveled edge will be applied to the bed lines and tree rings. This will be completed at a depth of 2-3 inches and kept in a neat manner.

A pre-emergent will be applied to all planting beds and tree ring areas. In some areas of groundcover, a pre-emergent may not be applied to ensure there is no damage to the plant material. The pre-emergent will help prevent excessive weed growth. If a fall leaf clean-up was not completed from the previous year, the current spring clean up will take more time to clean up, so additional time may be needed from one year to the next.

~~**Mulching Application** - once the spring clean-up is completed, natural triple-shredded mulch will be applied. This will be completed in late winter/early spring. Mulch will be kept away from tree trunks and the canopy of the shrubs. The goal is to maintain a 3 inch depth of mulch. Unless otherwise noted in the contract, removal of the existing excessive mulch in beds or tree rings is not included within this Outline of Maintenance Services. This is a recurring additional cost, which requires a separate proposal. It is recommended to have the excessive mulch removed every 4-5 years. Please note: An additional charge may incur if the amount used exceeds 15% of the estimate amount.~~

~~Mulching color is non-dyed or black~~

Turf Mowing - lawn maintenance / mowing will be completed on a weekly basis, or within a 7 - 14 day timeframe depending on weather conditions. The mowing height will be between 4 - 5 inches in height to maintain a clean and neat appearance. Before any mowing is completed, all trash and debris will be removed off the lawn. Any excessive grass clippings will be blown off hard surfaces to appear neat and clean when completed. We will also make every effort to avoid grass clippings getting into the mulched bed but will blow out any clippings when completed.

Unless otherwise indicated through the Outline of Maintenance services, edging / string trimming will be completed every other mowing cycle. This will be completed on all curbs and hard surfaces, and any other paved areas.

~~**Weed Control** - through the use of broadleaf herbicides and hand control, the mulched beds and tree rings will be maintained to present a clean and neat appearance. An herbicide will also be used to control any weeds within the cracks of the sidewalks and hard surfaces, as best as possible. All material used will be mixed and used according to the product label and application rates.~~

~~**Pruning of Plant Material** - this includes shrubs and groundcover throughout the area, unless otherwise indicated in the Outlined Maintenance services. Shrubs will be pruned to maintain a clean and neat appearance, and keep sizing manageable. Hand pruning of shrubs will not include; corrective pruning to correct previous years improper pruning techniques, rejuvenation pruning, or correction of neglectful pruning in the past, such as bad pruning cuts that have left stubs. This can be completed in a separate proposal for service to help improve the health and condition of the material.~~

~~Standard pruning practices as outlined by the Penn State extension will be completed on the material. All groundcover being maintained will be pruned to provide clearance to edges of sidewalks and walkways, unless otherwise noted in the Outline of Maintenance Service. All resulting debris will be removed off site when completed. Unless otherwise noted, plant material will be pruned twice throughout the season (summer + fall).~~

Fertilizing Application -

Our 4-round program includes the following 4 treatments: 1st Round / Mar-Apr: This round includes preemergent designed to keep crabgrass and other summer weeds from ever germinating along with weed control for any winter season broadleaf weeds that popped up over the winter. 2nd Round / Apr-May: Includes a second round of preemergent to extend protection into late spring along with weed control designed to kill spring weeds. It also includes fertilizer to give the grass the strength to keep ahead of weeds as late spring turns to summer. 3rd Round / July- Aug: A recovery and stimulus application of fertilizer focused on developing new roots to take up more nutrients and water for a thicker greener lawn. Selective spot applications are made on controllable broad leaf weeds. 4th Round / Oct-Nov: Winterizes your lawn with fertilizer so that they store carbohydrates to make it through the winter in addition to killing fall weeds and preventing winter weeds.
~~Our 7-round program enhances our 4-round program by adding 2 additional fertilization and weed control rounds as well as a round of grub control. 1st Additional Round / June: Includes fertilizer and spot spraying of weeds in early summer. This round is designed to be applied in tandem with grub control. 2nd Additional Round / Grub Control / June: This round specializes in killing off and suppressing grubs in your lawn as well as other insects with chewing mouth parts. It will be applied with the previously mentioned round allowing your lawn to immediately start recovering from any damage cause by the grubs, in addition to reducing the time we need to be on your lawn. 3rd Additional Round / Sep: This round includes fertilizer which stimulates the root growth that will benefit your lawns foundation for next year while helping the lawn recover from any summer stress.~~

Leaf Clean-up - leaf debris will be blown, collected, and cleaned up 2x in the fall season. This will be in November and December / January, or unless otherwise noted in the Outline of Maintenance Services. During the clean-up we will use mowers to mulch leaves into the lawn areas to keep organic matter on the lawn, but not an excessive amount - only light accumulations. When completing the leaf cleanup, leaves will be hauled off site and collected into the leaf vacuum, or if available, leaves will be blown into the wooded area to avoid hauling / dumping costs.

~~**Perennial Cutback** - during the fall leaf clean-up, we will cut back the perennials within the landscape. Unless otherwise noted, all perennials will be flush cut around the foundation of the house. All perennials (except for Liriope) will be cut down. Ornamental grasses can be cut down in the spring or fall, depending on if winter impact is valued. This will allow the~~

~~perennials to overwinter and start the spring season with fresh growth.~~

Account Manager Property Inspection - at a minimum of 4x throughout the season, a manager from Bates Landscaping will walk to inspect the property. This inspection will bring to light any additional services / recommendations that should be completed. The manager will look for such landscape items but are not limited to; dead / dying plant material, pruning needs, hazardous landscape items, annual or container change outs for seasonal color, border green reductions, and capital improvement opportunities.

ADDITIONAL NOTES -

The cemetery are a high priority for holidays - which are important to keep clean and ready for visitors.

The mowing pattern is bi-weekly for the cemetery and more can be added if requested additionally.

We are recommending to keep the front entrance clean and neat and along the roads and then meadow/field mowing that is 2x per year will reduce annual cost but still maintain a neat appearance. When the field mowing is completed, we will use a brush hog or similar to 'mulch up' the organic material.

The goal for the properties is to start to reduce down on regular mowings and switch to a meadow mow for the upper fields. This will allow for some enhancements to be moved in for needed Tree Care, more mowing visits, and better general upkeep.

CONTRACT SERVICES	Visits	Billing Type	Visit Price	Season Price
Spring Clean-up	**1**	**Per Season**	**$606.24**	**$606.24**
Turf Mowing	**20**	**Per Season**	**$1,212.48**	**$24,249.60**
Field/Meadow Mowing	**2**	**Per Season**	**$202.08**	**$404.16**
Fall Clean-up 1	**1**	**Per Season**	**$2,424.96**	**$2,424.96**
Account Manager Property Inspection	**4**	**Per Season**	**$0.00**	**$0.00**

SubTotal (All Contract Services)	**$27,684.96**
Taxes	**$0.00**
Total (All Contract Services)	**$27,684.96**

The total price of all seasonal services is $27,684.96 collected in 12 payments of $2,307.08 per payment ($2,307.08 after tax).

Extra Services	Visits	Billing Type	Visit Price	Season Price
Fertilizing Applications	**4**	**Per Visit**	**$1,538.56**	**$6,154.24**

Extra Services	Visits	Billing Type	Visit Price	Season Price
Fall Clean-up 2	**1**	**Per Visit**	**$2,424.96**	**$2,424.96**

Time for Acceptance: This Agreement must be signed by the Client and returned to the Company within thirty (30) days of the date written above, or the Agreement will be canceled the terms and conditions contained in this Agreement and described in the ("Proposal") set forth the landscaping services to be performed by the Company (together, the "Services"), and constitutes the entire agreement between the Parties regarding the subject matter. In the event of any conflict between this Agreement and the annexed Proposal this Agreement shall control.

Right of Rescission: The Client may cancel this Agreement, without any penalty or obligation, within three (3) business days from the Company's receipt of the signed Agreement. If the Client cancels, any payments made by the Client for the Services, and any negotiable instrument executed by the Client, will be returned within ten (10) business days following receipt of your cancellation notice by the Company.

Non-Payment: In the event that a payment is unpaid by the Client more than thirty-five (35) days after receipt of the invoice, the Client shall pay the Company a service charge of 2.5% per month, which is an annual percentage rate of thirty percent (30%). If outside assistance is used to collect the balance owed, the Client is solely responsible for all costs associated with the collection including, but not limited to, a mandatory minimum fee of twenty-five percent (25%) of the total invoice, plus attorney's fees, court costs, and property liens.

Utilities:

- We recommend having all landscape lighting, dog fences and irrigation marked before start of project.
- Our utility markings only include major utility providers / any well water, propane tank, septic system, cesspool, or any other off grid utility that we are unaware of should be marked by the provider and is clients responsibility.
- All utilities will be marked by 811 (electric, Gas, Water, Cable, Phone). If any utility on the property is discovered while digging that is not marked or marked incorrectly and leads to a delay in the work additional charges may be incurred. If additional charges will be incurred the client will be informed before hand and will need to approve work before proceeding further
- Bates Landscaping will make every effort to ensure that irrigation and other landscape lighting wires are not cut during the duration of the project due to miss marking, etc.
- Bates Landscaping will charge an additional fee to fix anything that is unmarked or miss marked by an outside contractor and gets damaged. We will not reimburse for repairs from outside contractors unless specifically stated here or in writing.

Excess Materials: To ensure that there are enough materials to provide the Services, the Company may order more materials than may be necessary to complete the Services. Any excess materials will not result in a change of the agreed upon contract price. All materials remaining after completion of the Services shall remain the property of the Company.

Concealed Structures: Client is responsible for identifying all known concealed structures, irrigation systems, underground lighting, pipes, or utility lines at the site. The Company shall not be held liable for damage to any undisclosed concealed hazards including, but not limited to, unmarked pipes, concealed structures, or utilities.

Concealed Contingencies: Client shall pay additional sums on a time and material basis for any additional services required to complete the job caused by concealed contingencies such as concrete, foreign matter, stinging insect nests, rock, pipe, or electrical lines, or any other condition not readily apparent in estimating the Services agreed to, or any delays resulting from unanticipated interruptions outside the control of the Company. Client will be notified of additional charges before additional services take place

Access: Client shall provide access to work areas at the site for employees and vehicles, and agrees to keep driveways clear and available for the movement and parking of trucks and equipment during work hours. Unless otherwise specified in this Agreement, the Company shall not be expected to keep gates closed for any reason, and shall not be liable for any

injuries or damages resulting from such access.

Client Covenant Noninterference: Client shall not attempt to direct any of the Company's workers on the site, exclude them from the site, demand work from them, remove the permit from the site, or interfere in any way with the Company's work unless expressly authorized by the Company in writing.

Change Orders: Any extra services which are requested or required due to the condition of the property, building, change of building code, increase in material prices, increase in labor prices, increase in fuel prices or concealed contingencies shall be performed only after a written change order, "Addendum" is signed by the Client upon a change order form, or expressly agreed to by the Parties in writing and delivered to the Company, accompanied by full payment for the change order if applicable. A change order may increase or decrease the price, provide for more or less time to complete work, for more or less materials, or for labor and other clauses. Notwithstanding the foregoing, the Company reserves the right to change the materials used on the job without prior notice to or approval from the Client, provided that the changed materials are comparable in price, quality, and appearance, as determined by the Company in its sole discretion.

Client's Required Insurance: Client shall carry insurance in the full replacement value of all improvements on the property and/or general liability insurance.

Company's Required Insurance: The Company is insured for liability resulting from injury to persons or property, automotive, and carries a valid worker's compensation policy.

Default: In the event that either Party defaults under this Agreement, the non-defaulting Party shall deliver to the defaulting Party a dated "notice of default," specifying the default and requesting the correction thereof. In no event, shall the Company be liable for any consequential, incidental, or special damages. In the event of default by the Client, the Company shall have the right, but not the obligation, to suspend or terminate the Services, to retain all deposits then held, and to peacefully repossess all materials previously delivered or installed, for which payment has not been made in full, to remove its equipment from the job site and terminate this Agreement.

Notices: Any notices to either Party under this Agreement shall be in writing and delivered by hand, sent by nationally recognized messenger service, registered or certified mail, or email.

Termination: Notice of termination of this Agreement by the Client is to be received by the Company no less than ten (10) days before work is scheduled to start, and any termination notice received after midnight on the eleventh day before work is scheduled to start will result in the Client's Security Deposit being forfeited. In the event of termination of this Agreement by the Client before work is scheduled to start, the Client waives any and all right to injunctive relief in the event of any dispute with the Company, and the Client's sole remedy in such a dispute shall be at law.

Governing Law: This Agreement shall be governed and construed in accordance with the laws of the Commonwealth of Pennsylvania applicable to contracts made and fully performed therein, and the state and federal courts located in Pennsylvania shall have exclusive jurisdiction of all suits and proceedings arising out of or in connection with this Agreement. Both Parties hereby submit to the jurisdiction of said courts for the purposes of any such suit or proceeding, and waive any claim that any such forum is an inconvenient forum.

Evergreen Clause - The initial term of the services is for one (1) year from the date of execution, and will automatically renew for successive one (1) year terms thereafter unless either party gives the other party written notice of termination at least thirty (30) days prior to the expiration of the then current term.

Estimate authorized by: Melissa Blake

Melissa Blake

Signature Date: 10/22/2026

Email: melissa@bateslandscaping.net

Estimate approved by: _____

Signature Date: _____